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[Title] Treaty Between the United States of America and the Russian Federation on Further Reduction and Limitation of Strategic Offensive Arms (START II)

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Treaty Between the United States of America and the Russian Federation on Further Reduction and Limitation of Strategic Offensive Arms (START II)

(Note: Certain dates and deadlines of the Treaty have been modified by the START II Protocol signed in New York on September 26, 1997, which is subject to ratification by both the United States Senate and the Russian Duma. These changes have been incorporated in the following text.)

The United States of America and the Russian Federation, hereinafter referred to as the Parties,

Reaffirming their obligations under the Treaty Between the United States of America and the Union of Soviet Socialist Republics on the Reduction and Limitation of Strategic Offensive Arms of July 31, 1991, hereinafter referred to as the START Treaty,

Stressing their firm commitment to the Treaty on the Non-Proliferation of Nuclear Weapons of July 1, 1968, and their desire to contribute to its strengthening,

Taking into account the commitment by the Republic of Belarus, the Republic of Kazakhstan, and Ukraine to accede to the Treaty on the Non-Proliferation of Nuclear Weapons of July 1, 1968, as non-nuclear-weapon States Parties,

Mindful of their undertakings with respect to strategic offensive arms under Article VI of the Treaty on the Non-Proliferation of Nuclear Weapons of July 1, 1968, and under the Treaty Between the United States of America and the Union of Soviet Socialist Republics on the Limitation of Anti-Ballistic Missile Systems of May 26, 1972, as well as the provisions of the Joint Understanding signed by the Presidents of the United States of America and the Russian Federation on June 17, 1992, and of the Joint Statement on a Global Protection System signed by the Presidents of the United States of America and the Russian Federation on June 17, 1992,

Desiring to enhance strategic stability and predictability, and, in doing so, to reduce further strategic offensive arms, in addition to the reductions and limitations provided for in the START Treaty,

Considering that further progress toward that end will help lay a solid foundation for a world order built on democratic values that would preclude the risk of outbreak of war,

Recognizing their special responsibility as permanent members of the United Nations Security Council for maintaining international peace and security,

Taking note of United Nations General Assembly Resolution 47/52K of December 9, 1992.

Conscious of the new realities that have transformed the political and strategic relations between the Parties, and the relations of partnership that have been established between them,

Have agreed as follows:

Article I

1. Each Party shall reduce and limit its intercontinental ballistic missiles (ICBMs) and ICBM launchers, submarine-launched ballistic missiles (SLBMs) and SLBM launchers, heavy bombers, ICBM warheads, SLBM warheads, and heavy bomber armaments, so that [seven years after entry into force of the START Treaty] no later than December 31, 2004 and thereafter, the aggregate number for each Party, as counted in accordance with Articles III and IV of this Treaty, does not exceed, for warheads attributed to deployed ICBMs, deployed SLBMs, and deployed heavy bombers, a number between 3800 and 4250 or such lower number as each Party shall decide for itself, but in no case shall such number exceed 4250.

2. Within the limitations provided for in paragraph 1 of this Article, the aggregate numbers for each Party shall not exceed:

(a) 2160, for warheads attributed to deployed SLBMs;

(b) 1200 for warheads attributed to deployed ICBMs of types to which more than one warhead is attributed; and

(c) 650, for warheads attributed to deployed heavy ICBMs.

3. Upon fulfillment of the obligations provided for in paragraph 1 of this Article, each Party shall further reduce and limit its ICBMs and ICBM launchers, SLBMs and SLBM launchers, ICBM warheads, SLBM warheads, and heavy bomber armaments, so that no later than [January 1, 2003] December 31, 2007, and thereafter, the aggregate number for each Party, as counted in accordance with Articles III and IV of this Treaty, does not exceed, for warheads attributed to deployed ICBMs, deployed SLBMS, and deployed heavy bombers, a number between 3000 and 3500 or such lower number as each Party shall decide for itself, but in no case shall such number exceed 3500.

4. Within the limitations provided for in paragraph 3 of this Article, the aggregate numbers for each Party shall not exceed:

(a) a number between 1700 and 1750, for warheads attributed to deployed SLBMs or such lower number as each Party shall decide for itself, but in no case shall such number exceed 1750;

(b) zero, for warheads attributed to deployed ICBMs of types to which more than one warhead is attributed; and

(c) zero, for warheads attributed to deployed heavy ICBMs.

5. The process of reductions provided for in paragraphs 1 and 2 of this Article shall begin upon entry into force of this Treaty, shall be sustained throughout the reductions period provided for in paragraph 1 of this Article, and shall be completed no later than [seven years after entry into force of the START Treaty] December 31, 2004. Upon completion of these reductions, the Parties shall begin further reductions provided for in paragraphs 3 and 4 of this Article, which shall also be sustained throughout the reductions period defined in accordance with paragraphs 3 and 6 of this Article.

6. [Provided that the Parties conclude, within one year after entry into force of this Treaty, an agreement on a program of assistance to promote the fulfillment of the provisions of this Article, the obligations provided for in paragraphs 3 and 4 of this Article and in Article II of this Treaty shall be fulfilled by each Party no later than December 31, 2000.] The Parties may conclude an agreement on a program of assistance for the purpose of facilitating implementation of the provisions of this Article, including for the purpose of accelerating such implementation.

Article II

1. No later than [January 1, 2003] December 31, 2007, each Party undertakes to have eliminated or to have converted to launchers of ICBMs to which one warhead is attributed all its deployed and non-deployed launchers of ICBMs to which more than one warhead is attributed under Article III of this Treaty (including test launchers and training launchers), with the exception of those launchers of ICBMs other than heavy ICBMs at space launch facilities allowed under the START Treaty, and not to have thereafter launchers of ICBMs to which more than one warhead is attributed. ICBM launchers that have been converted to launch an ICBM of a different type shall not be capable of launching an ICBM of the former type. Each Party shall carry out such elimination or conversion using the procedures provided for in the START Treaty, except as otherwise provided for in paragraph 3 of this Article.

2. The obligations provided for in paragraph 1 of this Article shall not apply to silo launchers of ICBMs on which the number of warheads has been reduced to one pursuant to paragraph 2 of Article III of this Treaty.

3. Elimination of silo launchers of heavy ICBMs, including test launchers and training launchers, shall be implemented by means of either:

(a) elimination in accordance with the procedures provided for in Section II of the Protocol on Procedures Governing the Conversion or Elimination of the Items Subject to the START Treaty; or

(b) conversion to silo launchers of ICBMs other than heavy ICBMs in accordance with the procedures provided for in the Protocol on Procedures Governing Elimination of Heavy ICBMs and on Procedures Governing Conversion of Silo Launchers of Heavy ICBMs Relating to the Treaty Between the United States of America and the Russian Federation on Further Reduction and Limitation of Strategic Offensive Arms, hereinafter referred to as the Elimination and Conversion Protocol. No more than 90 silo launchers of heavy ICBMs may be so converted.

4. Each Party undertakes not to emplace an ICBM, the launch canister of which has a diameter greater than 2.5 meters, in any silo launcher of heavy ICBMs converted in accordance with subparagraph 3(b) of this Article.

5. Elimination of launchers of heavy ICBMs at space launch facilities shall only be carried out in accordance with subparagraph 3(a) of this Article.

6. No later than [January 1, 2003] December 31, 2007, each Party undertakes to have eliminated all of its deployed and non-deployed heavy ICBMs and their launch canisters in accordance with the procedures provided for in the Elimination and Conversion Protocol or by using such missiles for delivering objects into the upper atmosphere or space, and not to have such missiles or launch canisters thereafter.

7. Each Party shall have the right to conduct inspections in connection with the elimination of heavy ICBMs and their launch canisters, as well as inspections in connection with the conversion of silo launchers of heavy ICBMs. Except as otherwise provided for in the Elimination and Conversion Protocol, such inspections shall be conducted subject to the applicable provisions of the START Treaty.

8. Each Party undertakes not to transfer heavy ICBMs to any recipient whatsoever, including any other Party to the START Treaty.

9. Beginning on [January 1, 2003] December 31, 2007, and thereafter, each Party undertakes not to produce, acquire, flight-test (except for flight tests from space launch facilities conducted in accordance with the provisions of the START Treaty), or deploy ICBMs to which more than one warhead is attributed under Article III of this Treaty.

Article III

1. For the purposes of attributing warheads to deployed ICBMs and deployed SLBMs under this Treaty, the Parties shall use the provisions provided for in Article III of the START Treaty, except as otherwise provided for in paragraph 2 of this Article.

2. Each Party shall have the right to reduce the number of warheads attributed to deployed ICBMs or deployed SLBMs only of existing types, except for heavy ICBMs. Reduction in the number of warheads attributed to deployed ICBMs and deployed SLBMs of existing types that are not heavy ICBMs shall be carried out in accordance with the provisions of paragraph 5 of Article III of the START Treaty, except that:

(a) the aggregate number by which warheads are reduced may exceed the 1250 limit provided for in paragraph 5 of Article III of the START Treaty;

(b) the number by which warheads are reduced on ICBMs and SLBMS, other than the Minuteman III ICBM for the United States of America and the SS-N-18 SLBM for the Russian Federation, may at any one time exceed the limit of 500 warheads for each Party provided for in subparagraph 5(c)(i) of Article III of the START Treaty;

(c) each Party shall have the right to reduce by more than four warheads, but not by more than five warheads, the number of warheads attributed to each ICBM out of no more than 105 ICBMs of one existing type of ICBM. An ICBM to which the number of warheads attributed has been reduced in accordance with this paragraph shall only be deployed in an ICBM launcher in which an ICBM of that type was deployed as of the date of signature of the START Treaty; and

(d) the reentry vehicle platform for an ICBM or SLBM to which a reduced number of warheads is attributed is not required to be destroyed and replaced with a new reentry vehicle platform.

3. Notwithstanding the number of warheads attributed to a type of ICBM or SLBM in accordance with the START Treaty, each Party undertakes not to:

(a) produce, flight-test, or deploy an ICBM or SLBM with a number of reentry vehicles greater than the number of warheads attributed to it under this Treaty; and

(b) increase the number of warheads attributed to an ICBM or SLBM that has had the number of warheads attributed to it reduced in accordance with the provisions of this Article.

Article IV

1. For the purposes of this Treaty, the number of warheads attributed to each deployed heavy bombers shall be equal to the number of nuclear weapons for which any heavy bomber of the same type or variant of a type is actually equipped, with the exception of heavy bombers reoriented to a conventional role as provided for in paragraph 7 of this Article. Each nuclear weapon for which a heavy bomber is actually equipped shall count as one warhead toward the limitations provided for in Article I of this Treaty. For the purpose of such counting, nuclear weapons include long-range nuclear air-launched cruise missiles (ALCMs), nuclear air-to-surface missiles with a range of less than 600 kilometers, and nuclear bombs.

2. For the purposes of this Treaty, the number of nuclear weapons for which a heavy bomber is actually equipped shall be the number specified for heavy bombers of that type and variant of a type in the Memorandum of Understanding on Warhead Attribution and Heavy Bomber Data Relating to the Treaty Between the United States of America and the Russian Federation on Further Reduction and Limitation of Strategic Offensive Arms, hereinafter referred to as the Memorandum on Attribution.

3. Each Party undertakes not to equip any heavy bomber with a greater number of nuclear weapons than the number specified for heavy bombers of that type or variant of a type in the Memorandum on Attribution.

4. No later than 180 days after entry into force of this Treaty, each Party shall exhibit one heavy bomber of each type and variant of a type specified in the Memorandum on Attribution. The purpose of the exhibition shall be to demonstrate to the other Party the number of nuclear weapons for which a heavy bomber of a given type or variant of a type is actually equipped.

5. If either Party intends to change the number of nuclear weapons specified in the Memorandum on Attribution, for which a heavy bomber of a type or variant of a type is actually equipped, it shall provide a 90-day advance

notification of such intention to the other Party. Ninety days after providing such a notification, or at a later date agreed by the Parties, the Party changing the number of nuclear weapons for which a heavy bomber is actually equipped shall exhibit one heavy bomber of each such type or variant of a type. The purpose of the exhibition shall be to demonstrate to the other Party the revised number of nuclear weapons for which heavy bombers of the specified type or variant of a type are actually equipped. The number of nuclear weapons attributed to the specified type and variant of a type of heavy bomber shall change on the ninetieth day after the notification of such intent. On that day, the Party changing the number of nuclear weapons for which a heavy bomber is actually equipped shall provide to the other Party a notification of each change in data according to categories of data contained in the Memorandum on Attribution.

6. The exhibitions and inspections conducted pursuant to paragraphs 4 and 5 of this Article shall be carried out in accordance with the procedures provided for in the Protocol on Exhibitions and Inspections of Heavy Bombers Relating to the Treaty Between the United States of America and the Russian Federation on Further Reduction and Limitation of Strategic Offensive Arms, hereinafter referred to as the Protocol on Exhibitions and Inspections.

7. Each Party shall have the right to reorient to a conventional role heavy bomber equipped for nuclear armaments other than long-range nuclear ALCMS. For the purposes of this Treaty, heavy bombers reoriented to a conventional role are those heavy bombers specified by a Party from among its heavy bombers equipped for nuclear armaments other than long-range nuclear ALCMs that have never been accountable under the START Treaty as heavy bombers equipped for long-range nuclear ALCMS. The reorienting Party shall provide to the other Party a notification of its intent to reorient a heavy bomber to a conventional role no less than 90 days in advance of such reorientation. No conversion procedures shall be required for such a heavy bomber to be specified as a heavy bomber reoriented to a conventional role.

8. Heavy bomber reoriented to a conventional role shall be subject to the following requirements

(a) the number of such heavy bombers shall not exceed 100 at any one time;

(b) such heavy bombers shall be based separately from heavy bombers with nuclear roles;

(c) such heavy bombers shall be used only for non-nuclear missions. Such heavy bombers shall not be used in exercises for nuclear missions, and their aircrews shall not train or exercise for such missions; and

(d) heavy bombers reoriented to a conventional role shall have differences from other heavy bombers of that type or variant of a type that are observable by national technical means of verification and visible during inspection.

9. Each Party shall have the right to return to a nuclear role heavy bombers that have been reoriented in accordance with paragraph 7 of this Article to a conventional role. The Party carrying out such action shall provide to the other Party through diplomatic channels notification of its intent to return a heavy bomber to a nuclear role no less than 90 days in advance of taking such action. Such a heavy bomber returned to a nuclear role shall not subsequently be reoriented to a conventional role. Heavy bombers reoriented to a conventional role that are subsequently returned to a nuclear role shall have differences observable by national technical means of verification and visible during inspection from other heavy bombers of that type and variant of a type that have not been reoriented to a conventional role, as well as from heavy bombers of that type and variant of a type that are still reoriented to a conventional role.

10. Each Party shall locate storage areas for heavy bomber nuclear armaments no less than 100 kilometers from any air base where heavy bombers reoriented to a conventional role are based.

11. Except as otherwise provided for in this Treaty, heavy bombers reoriented to a conventional role shall remain subject to the provisions of the START Treaty, including the inspection provisions.

12. If not all heavy bombers of a given type or variant of a type are reoriented to a conventional role, one heavy bomber of each type or variant of a type of heavy bomber reoriented to a conventional role shall be exhibited in

the open for the purpose of demonstrating to the other Party the differences referred to in subparagraph 8(d) of this Article. Such differences shall be subject to inspection by the other Party.

13. If not all heavy bombers of a given type or variant of a type reoriented to a conventional role are returned to a nuclear role, one heavy bomber of each type and variant of a type of heavy bomber returned to a nuclear role shall be exhibited in the open for the purpose of demonstrating to the other Party the differences referred to in paragraph 9 of this Article. Such differences shall be subject to inspection by the other Party.

14. The exhibitions and inspections provided for in paragraphs 12 and 13 of this Article shall be carried out in accordance with the procedures provided for in the Protocol on Exhibitions and Inspections.

Article V

1. Except as provided for in this Treaty, the provisions of the START Treaty, including the verification provisions, shall be used for implementation of this Treaty.

2. To promote the objectives and implementation of the provisions of this Treaty, the Parties hereby establish the Bilateral Implementation Commission. The Parties agree that, if either Party so requests, they shall meet within the framework of the Bilateral Implementation Commission to:

(a) resolve questions relating to compliance with the obligations assumed; and

(b) agree upon such additional measures as may be necessary to improve the viability and effectiveness of this Treaty.

Article VI

1. This Treaty, including its Memorandum on Attribution., Elimination and Conversion Protocol, and Protocol on Exhibitions and Inspections, all of which are integral parts thereof, shall be subject to ratification in accordance with the constitutional procedures of each Party. This Treaty shall enter into force on the date of the exchange of instruments of ratification, but not prior to the entry into force of the START Treaty.

2. The provisions of paragraph 8 of Article II of this Treaty shall be applied provisionally by the Parties from the date of its signature.

3. This Treaty shall remain in force so long as the START Treaty remains in force.

4. Each Party shall, in exercising its national sovereignty, have the right to withdraw from this Treaty if it decides that extraordinary events related to the subject matter of this Treaty have jeopardized its supreme interests. It shall give notice of its decision to the other Party six months prior to withdrawal from this Treaty. Such notice shall include a statement of the extraordinary events the notifying Party regards as having jeopardized its supreme interests.

Article VII

Each Party may propose amendments to this Treaty. Agreed amendments shall enter into force in accordance with the procedures governing entry into force of this Treaty.

Article VIII

This Treaty shall be registered pursuant to Article 102 of the Charter of the United Nations.

DONE at Moscow on January 3, 1993, in two copies, each in the English and Russian languages, both texts being equally authentic.

FOR THE UNITED STATES

OF AMERICA

FOR THE RUSSIAN

FEDERATION